

A motion to consolidate must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated and must have a proof of service filed as part of the motion. (California Rules of Court, rule 3.350(a)(2)(B)-(C).) A notice of continuance was properly served on all attorneys of record in all of the cases sought to be consolidated. (See ROA 68.)

The motion is **unopposed**.

Defendants' motion to consolidate complies with the procedural requirements set forth in California Rules of Court, rule 3.350.

Code of Civil Procedure § 1048(a) provides: "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in issue in the actions, it may order all the actions consolidated, and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." "Consolidation under Code of Civil Procedure section 1048 is permissive, and it is for the trial court to determine whether the consolidation is for all purposes or for trial only. [Citation.]" (*Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1147-1149.)

The granting or denial of the motion to consolidate rests in the sound discretion of the trial court, and will not be reversed except upon a clear showing of abuse of discretion. (*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-79.)

Here, it appears that Defendants seek a complete consolidation of two related cases: *Jovan Derrick Giles v. Peter Sandoval Cervantes and Aliso Viejo Towing Recovery*, case no. 30-2025-01458151-CU-PA-CJC and *Carolle Gonzales v. Aliso Viejo Towing and Peter Sandoval Cervantes; Sieglings Hite*, case no. 30-2025-014899339-CU-PA-NJC.

Defendants' counsel provides that these two related cases both arise out of the same October 27, 2023, incident in which Plaintiffs claim to have sustained injuries after a rear end accident on the I-5 Northbound near Alicia Parkway, such that there are common issues of law and fact. (Declaration of Nicholas Maranesi, ¶¶ 3, 7.)

This being said, the Court notes that the Complaint alleges that the subject accident occurred on or about August 16, 2023, not October 27, 2023 as asserted in the motion. (See Complaint, ¶¶ 1, 7, 17.) Thus, there is some discrepancy as to the date of the incident/accident.

Nevertheless, the motion is unopposed and Defendants' provide evidence that both cases arise out of the same incident and involve common questions of law and fact as to the liability of Defendants to each plaintiff such that a complete consolidation of the cases would enhance judicial efficiency and avoid the danger of inconsistent adjudications. Defendants' motion to consolidate is **GRANTED**.

Giles v. Cervantes, case no. 30-2025-01458151-CU-PA-CJC is the lead case. (California Rules of Court, rule 3.350(b).)

Moving Defendants to give notice.

9.	30-2025-01514516 Zhu vs. Wu	1. Case Management Conference 2. Motion for Preliminary Injunction Plaintiffs Shujun Zhu and Blue Gum Warehouse, LLC (“Plaintiffs”) move for a preliminary injunction and asks the Court for an order: (1) enjoining Defendants Ji Wu, John Chung-Ching Tu, and Peakland Warehouse 1315, Inc. from interfering with Plaintiff Shujun Zhu’s exercise of 56.7% of the voting rights in Blue Gum Warehouse, LLC, (2) suspending and enjoining Defendants’ voting and governance rights in Blue Gum Warehouse, LLC during the pendency of this action, (3) enjoining the dissipation or transfer of Blue Gum Warehouse, LLC assets, and (4) mandating preservation of all financial records of Blue Gum Warehouse, LLC, Peakland Management Anaheim, Inc., and Peakland Warehouse 1315, Inc., and requiring Defendants to maintain and not destroy, alter, conceal, or transfer any books, records, bank statements, ledgers, leases, or other financial documents relating to Blue Gum Warehouse, LLC. Defendants Ji Wu, John Chung-Ching Tu, and Blue Gum Warehouse, LLC (“Defendants”) oppose the motion. The Motion is GRANTED in part and DENIED in part, as follows: The Motion is GRANTED as to Plaintiff’s request to mandate the preservation of all financial records of Blue Gum Warehouse, LLC, Peakland Management Anaheim, Inc., and Peakland Warehouse 1315, Inc., and requiring Defendants to maintain and not destroy, alter, conceal, or transfer any books, records, bank statements, ledgers, leases, or other financial documents relating to Blue Gum Warehouse, LLC. The Motion is DENIED as to the other requests. A. Preliminary Injunction “An injunction is a writ or order requiring a person to refrain from a particular act.” (Code Civ. Proc., § 525.) “It may be granted by the court in which the action is brought, or by a judge thereof; and when granted by a judge, it may be enforced as an order of the court.” (Code Civ. Proc., § 525.) Pursuant to Code of Civil Procedure section 527: “A preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor. No preliminary injunction shall be granted without notice to the opposing party.” (Code Civ. Proc., § 527(a).) “A trial court may grant a preliminary injunction upon a showing that (1) the party seeking the injunction is likely to prevail on the merits at trial, and (2) the interim harm to that party if an injunction is denied is greater than the [interim] harm the [opposing party] is likely to suffer if the ... injunction is issued.” (<i>Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc.</i> (2016) 6 Cal.App.5th 1178, 1183 [internal quotations omitted].) “These two showings operate on a sliding scale: ‘[T]he more likely it is that [the party seeking the injunction] will ultimately prevail, the less severe must be the harm that they allege will occur if the injunction does not issue.’ [Citation.]” (<i>Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc.</i> (2016) 6 Cal.App.5th 1178, 1183.)
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